

Sudhir Kumar Mishra v. State of U.P.

Allahabad High Court · Division Bench · 6 February 2014 · WRIT - C No. - 7403 of 2014 · **Writ disposed; EE to examine transformer-shifting claim under cl. 4.45 within two months.**

HEADNOTE

Without deciding whether a transformer on private-school land should be shifted, the High Court disposed of the writ by directing the Executive Engineer, Padrauna, to examine the petitioner's shifting claim in accordance with the Rules (counsel having cited cl. 4.45 of the Electricity Supply Code, 2005) and pass an order within two months.

FACTUAL SUMMARY

Sudhir Kumar Mishra, running a private school, sought a writ for shifting a transformer installed on the school land. He said he had deposited Rs. 500 with the electricity department to process the request. Counsel for the Electricity Department submitted that shifting is governed by Clause 4.45 of the Electricity Supply Code, 2005. The Court did not try the request on merits and left it to the Executive Engineer, Electricity Distribution Division, Padrauna, District Kushinagar.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.45

shifting of transformer

HOLDING

Shifting of a transformer is governed by Clause 4.45 of the Electricity Supply Code, 2005. The writ was disposed of with a direction to the Executive Engineer to examine the petitioner's shifting claim in accordance with the Rules and pass an appropriate order within two months; the Court did not grant or refuse shifting on merits. ¶ 1

FLAG ambiguous_clause

PRINCIPLE TAGS

relegate-to-statutory-remedy Without deciding whether a transformer on private-school land should be shifted, the High Court disposed of the writ by directing the Executive Engineer, Padrauna, to examine the petitioner's shifting claim in accordance with the Rules (counsel having cited cl.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TRANSFORMER INSTALLED ON THE SCHOOL LAND SHOULD BE SHIFTED

Left to the Executive Engineer to examine in accordance with the Rules / cl. 4.45 as cited. ¶ 1